

§ 715-a. Grounds and procedure for removal of commercial tenants for unlicensed cannabis retail sale. 1. Any duly authorized enforcement agency of the state or of a subdivision thereof, under a duty to enforce the provisions of the penal law or of any state or local law, ordinance, code, rule or regulation relating to buildings, or the cannabis control board, office of cannabis management or the attorney general pursuant to section one hundred thirty-eight-a of the cannabis law, may serve personally upon the owner or landlord of real property authorized or otherwise intended or advertised, in whole or part, for use to buy, sell or otherwise provide goods or services, or for other business, commercial, professional services or manufacturing activities, or upon their agent, a written notice requiring the owner or landlord to make an application for the removal of a commercial tenant so using or occupying the same for a violation of article two hundred twenty-two of the penal law or article six of the cannabis law involving the unlicensed sale of cannabis or products marketed or labeled as such. If the owner or landlord or their agent does not make such application within five days thereafter; or, having made it, does not in good faith diligently prosecute it, the enforcement agency giving the notice may bring a proceeding under this article for such removal as though the petitioner were the owner or landlord of the premises, and shall have precedence over any similar proceeding thereafter brought by such owner or landlord or to one theretofore brought by them and not prosecuted diligently and in good faith. An enforcement agency authorized to bring a petition hereunder may do so on their own initiative or upon a referral from an agency of the state or a subdivision thereof. The person in possession of the property, as well as any lessee or sublessee and the owner or landlord shall be made respondents in the proceeding.

2. A court, upon a finding of such violation may, in addition to any other order provided by law:

(a) grant a petition pursuant to this section ordering the immediate removal of such tenant;

(b) impose and require the payment by any respondent not otherwise subject to a civil penalty under section sixteen or one hundred twenty-five of the cannabis law, who has been found to have knowingly permitted such a violation, a civil penalty not exceeding five times the

amount of rent charged, owed, or paid, as the case may be, for the duration of the violation, which may be calculated from the date the owner or landlord respondent received notice of the violation to the date the unlicensed activity is abated, for which a respondent shall be required to provide sufficient proof thereof, including but not limited to a sworn statement by a local law enforcement or other governmental entity that the unlicensed activity has been abated; provided, however, that in a city with a population of over one million the civil penalty shall be fifty thousand dollars. The landlord or property owner shall also provide a copy of any executed lease with such tenant;

(c) order the payment of reasonable attorneys fees and the costs of the proceeding to the petitioner; and

(d) order that any such multiple respondents shall be jointly and severally liable for any payment so ordered under this subdivision.

3. For the purposes of a proceeding under this section, an enforcement agency of the state or of a subdivision thereof, which may commence a proceeding under this section, may subpoena witnesses, compel their attendance, examine them under oath before themselves or a court and require that any books, records, documents or papers relevant or material to the inquiry be turned over to them for inspection, examination or audit, pursuant to the civil practice law and rules.

4. The use or occupancy of premises customarily or habitually for the unlicensed retail sale of cannabis or products marketed or labeled as such shall constitute an illegal trade, manufacture, or other business for the purposes of section two hundred thirty-one of the real property law.